TOWNSHIP OF LINCOLN
CLARE COUNTY
175 LAKE GEORGE AVE., P.O. BOX 239
LAKE GEORGE, MI 48633

Supervisor, Dennis Zimmerman
Clerk, Carol Majewski
Treasurer, Maggie Carey
Trustee, Jerry Bridges
Trustee, Mike Tobin

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, August 12, 2015

The meeting was called to order by Chair Godau at 7:00 pm.

Roll Call:
Present – Board Members: Bridges, Secretary Engelhardt, Chair Godau, McCaslin, Vice-Chair Swanson,
Staff: Zoning Administrator Carey, Recording Secretary Sherrod
Absent – Building Inspector Mantei
Public - 5

Approval of Minutes:
Regular Meeting minutes of June 24, 2015 – It was moved by Bridges and seconded by Swanson to accept the minutes as written. Motion carried.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated.

General Comments by Chair: Chair Godau advised that Lincoln Township is a Zoned Township. Of sixteen townships in Clare, ten are zoned; six are not. It is important for people who move into the township to understand that Lincoln is zoned and how the boards are selected or elected and the structure under which those boards operate.

He explained that the ZBA is not a political structure, but one of appointment. He went on to explain about what a variance involves and how the zoning administrator deals with the steps of zoning permits, building permits, and then the process in which a permit is denied. He also explained the roles of the zoning administrator and the building inspector. The decision of the zoning board of appeals shall be final.

A party aggrieved by the decision may appeal to the circuit court of Clare County within whichever of the following deadlines comes first:

a. Thirty days after the zoning board of appeals issues its decision in writing signed by the chairperson, if there is a chairperson, or signed by the members of the zoning board of appeals, if there is no chairperson.
b. Twenty-one days after the zoning board of appeals approves the minutes of its decision.

Purpose: Chair Godau read the following information: This is a variance request for James Howe pertaining to his property at 1412 Arbor Drive, Lake George, Michigan, for the placement of an Accessory Building which violates the required minimum five (5) foot setback from the property line to structure (Accessory Building).

Public notice: Notice of this Public Hearing was posted in the *Clare County Cleaver* (Legal Section) on July 23, 2015. Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall and on the township's website in the calendar of events.

Brief Explanation of the Rules: Chair Godau explained that variance requests are submitted by the persons making the request. The Lincoln Township Board of Appeals must follow the variance standards created by Michigan Statute. These provide that the ZBA must determine that a Practical Difficulty exists in order to grant a variance. These statutes ARE LAW and provide that: 1. There is a Practical Difficulty; 2. The circumstances are Unique to the Property; 3. There is Substantial Justice; 4. The issue was Not Self-Created; 5. Minimum Variance Necessary

Zoning Administrator Statement:
See Attachment #1

Petitioner's Statement: Mr. James Howe state that almost 3 years ago there was a slab on his property that was there when he purchased it and it looked bad, even if he tried to cover it with tarps and other materials to hide it. He saw some sheds by K&K and called to ask if he needed a permit to put up one of these sheds. Ken Osborne, the contractor, said he didn't need a permit. He protests that to place the building in any other place, he will have to cut down more trees. He explained that to move the shed in any way, it will cause a hardship in maneuvering his boat into the shed. Also when he drops off wood during different times in the year, moving the shed will make it much more difficult to unload his wood. He contends that it looks much better than what was there previously including the tarps that he used before the shed. He presented letters from neighbors on either side of his property which are in support of his shed and have no objections to the shed's placement. He stated that if Ken Osborne had indicated that he would need a permit and that there might be some problems in his desired placement, he would have been able to do something different. He claims that there is no other option with the lot's limitations.

He feels that a 40 foot lot presents a practical difficulty that is unique. Unique to the property is the pre-existing slab in that spot. Another practical difficulty is the number of trees that he would have to remove. He has already removed 11 trees. He feels that he has been supporting the natural resources in support of the mission of the ordinances. He then cited the neighbors and how they all cooperate and get along with taking care of their lands.

He feels he is stuck as the shape of the shed is such that it couldn't be reduced on either side. It is extremely heavy so that it will be next to impossible to move. He stated that Mr. Carey follows the rules of a 5 foot setback and has no wiggle room here, so that is why he is appealing to the board.

He said that it has been this way for 3 years and doesn't know who complained or why. He has invested $4,000 on this and if you tear it down, he is out that much. He said that back several years when he built his house, he was told no zoning was required at that time. For all of that he followed all the rules for that house and his other structures and assumed that the same would apply to this shed.

ZBA Members Comments & Questions:
ZA Carey stated that he doesn't know why a contractor would state that no building permit is needed as it is part of the state code.

Engelhardt: I was reviewing your material and have been out to visit your property. Yes, you have a wooded piece of property. My concern is the placement of that structure's proximity to the neighboring structure. There are only 14 inches from drip edge to drip edge. You had a structure that was there that was torn down. It was nonconforming to start with. Since this is not a residential structure you don't have the right to rebuild there. There is also a fire hazard with the structure. I understood that you were storing all your equipment and vehicles in the garage that you received a variance for. I would have difficulty granting this variance because of the proximity of the adjacent building. I think you have an issue with Mr. Osborne and if he could remove what it takes to become compliant, then this is his issue. I am trying to get 10 feet between the two buildings (his and the neighbor's). You need to get in touch with Mr. Osborne.

Howe: I have tried and it took me numerous calls to get a letter from him. If I shorten it, it will look bad and I won't have room to store everything I have.

Bridges: I have to agree with Cindy (Engelhardt) about the distance and the fire safety. Your letters are not applicable. These people who signed these letters could sell their property and then we would have to go through this all over again. I have been a builder for fifty years and I have never seen a building that I couldn't move. If you take that building and move it to that same side, you will solve the problem.

Howe: Where would you propose that I move it? Bridges: Why can't you move it back a few feet? Discussion between the two about where to move the shed and about the trees that came down for a previous variance and the trees that are still there. Mr. Howe offered to show on his pictures what his problems are.

Mr. Howe drew his exact situation and explained the difficulties in backing in trailers, boats, and other equipment into his garage. He says that the pre-existing slab is preventing him from having access to his wood storage.

Mr. Howe stated that he was told at a previous variance hearing for his garage that if he had letters of support from neighbors that it would help his case. He has the letters and some people here as support.

Bridges: If we allow this to stand and your neighbors had a fire and the equipment couldn't get through, the township could be sued by the insurance company.

Howe: I guess I am done then.

Bridges: You should go back to Mr. Osborne.

Howe: What if I cut off 4 feet from the building, would I be within my legal limits then?
Godau: yes, there isn't anything in the ordinance that says you can't have cement on the property.

Howe: What if I tarped over that slab to store a snowmobile? I thought I made a huge improvement in the neighborhood by putting in the shed.

McCaslin: If I were you, I would personally go to my attorney and have them deal with Mr. Osborne.

Bridges: We can't tell you to do any physical work on that structure as we don't know what it would do to the integrity of the structure.

Godau: We have all had to deal with the ordinances. You just needed to contact the building inspector here who would have directed you to see ZA Carey.

Public Comment:
Chair Godau explained that he never received any letters from surrounding property owners.

Mr. Howe says he understands the concern with safety, but that he feels that he has made things safer and better in appearance.

A comment was made that it seems that the problem is with the contractor and Mr. Howe should demand that he replace the building with one which complies with the ordinance.

Another comment was made concerning fire safety and appearance being improved. Bridges addressed some of the concerns about fire hazards in this situation.

A comment was made commending the board for explaining the process used in this hearing. This was followed by a statement of support of Mr. Howe.

Public Comment Closed by Chair

Discussion and Further Questions by ZBA Members:
There were no more questions.

Public Comment:
No further comments.
Finding of Fact: The board finalized their finding of facts and turned them in to Chair Godau to compile.

Final Decision: Godau requested a motion from the board. Bridges made a motion to deny the variance request. McCaslin seconded.

Godau explained that this motion requires a *yea* or *nay* in support of the motion.

Roll Call Vote:
Bridges: Y**;** Engelhardt: Y**;** Godau: Y; McCaslin: Y; Swanson: Y

Motion PASSES: 5 Yeas; 0 Nays. Variance is DENIED.

Adjournment: Bridges moved to adjourn; Swanson seconded. Motion passed with all in favor. Meeting adjourned at 8:19 pm.

Respectfully Submitted,

Cindy Engelhardt, Secretary

Attachment #1

(Zoning Administrator's Report)

On 04/17/15 I received a complaint that the owner of the property at 1412 Arbor Dr. had added a shed to his property with no Zoning Permit or Building Permit in violation of our Zoning Ordinance. I notified Mr. Howe, of 1412 Arbor Dr. that he needed to apply for a Zoning Permit and that I would turn it down as it was in violation of our setbacks and Mr. Howe would then have to move the shed to come into compliance with our Zoning Ordinance or apply for a Variance

The ZBA should grant a variance from the township's zoning laws only after the property in question meets stringent tests described in the zoning ordinance. Only the rarest situations should qualify for relief from the zoning ordinance's requirements because the zoning regulations are ultimately intended to protect the general health, safety and welfare of the township.

Practical Difficulty: Lincoln Township has a set of criteria an applicant must meet to be allowed a Variance. An applicant must meet each of the 5 criteria's for a variance, not 4 or 3, all 5 practical difficulties. Michigan appellate court has held that the Zoning Board of Appeals cannot grant a Variance without substantial evidence of all 5 practical difficulties.

For number one, Practical Difficulty, Mr. Howe says lot is very narrow and access to back lot would be cut off. Mr. Howe's shed is 24 X 24 and his lot is 40 feet wide. If Mr. Howe moves the shed to comply with our Ordinance, he

would be five feet from the property line on one side and have eleven feet on the other side more than enough room. There is no Practical Difficulty.

For number two Mr. Howe, states the placement of trees prevent moving the shed and allowing room to maneuver. Mr. Howe, in regard to the first Variance for this property used trees as an excuse, then as far as I can tell, removed all the trees. There is no Unique Situation.

Number three, Substantial Justice, a Variance could be detrimental to adjacent properties by being too close together and not allowing emergency vehicles access to the far back lot.

Number four, not self-created, Mr. Howe contends his contractor told him a Permit was not needed. Mr. Howe should have consulted the Zoning Administrator. Our Zoning Ordinance says an accessory building or structure, (both of which require a Zoning Permit), on the same lot or contiguous lot as the main residence must follow setbacks. It further defines a building as any structure having a roof supported by columns or walls for the shelter of persons, animals or property of any kind. That said this issue was self-created and is not a practical difficulty.

Number five, minimum variance necessary, there is no Practical Difficulty so this also does not apply.